Reconstruction Plans, 1863–1864

President Abraham Lincoln · December 8, 1863 & Sen. Benjamin Wade and Rep. Henry Winter Davis · July 1864

Source: Lincoln's Proclamation of Amnesty and Reconstruction (Dec. 8, 1863) and the Wade-Davis Bill (1864), text via Teaching American History (its editorial cuts are shown as . . .). Public domain. Non-contiguous passages are separated by [. . .]; shorter cuts inside a passage are marked with an ellipsis (. . .).

> Two rival wartime blueprints for readmitting Confederate states. Lincoln's Proclamation (Dec. 1863) pardons most Southerners who swear loyalty and accept emancipation, and lets a state rejoin once one-tenth of its 1860 voters take the oath. Congress's Wade-Davis Bill (July 1864) demands a majority oath, bars Confederate officials from the process, and writes the end of slavery into each new state constitution; Lincoln pocket-vetoed it.

Proclamation of Amnesty and Reconstruction — President Lincoln, December 8, 1863

A full pardon on condition of an oath

I, Abraham Lincoln, President of the United States, do proclaim . . . to all persons who have, directly or by implication, participated in the existing rebellion, except as hereinafter excepted, that a full pardon is hereby granted to them and each of them, with restoration of all rights of property, except as to slaves, and in property cases where rights of third parties shall have intervened, and upon the condition that every such person shall take and subscribe an oath, and thenceforward keep and maintain said oath inviolate; and which oath shall be registered for permanent preservation, and shall be of the tenor and effect following, to wit: “I, , do solemnly swear, in presence of Almighty God, that I will henceforth faithfully support, protect and defend the Constitution of the United States, and the union of the States thereunder; and that I will in like manner abide by and faithfully support all acts of Congress passed during the existing rebellion with reference to slaves so long and so far as not repealed, modified, or held void by Congress or by decision of the Supreme Court: and that I will in like manner abide by and faithfully support all proclamations of the President made during the existing rebellion having reference to slaves, so long and so far as not modified or declared void by decision of the Supreme Court. So help me God.”

[. . .]

Lincoln’s Ten Percent Plan

And I do further proclaim . . . that whenever, in any of the States of Arkansas, Texas, Louisiana, Mississippi, Tennessee, Alabama, Georgia, Florida, South Carolina, and North Carolina, a number of persons, not less than one tenth in number of the votes cast in such State at the presidential election of the year of our Lord one thousand eight hundred and sixty, each having taken the oath aforesaid and not having since violated it . . . shall re-establish a State government which shall be republican, and in no wise contravening said oath, such shall be recognized as the true government of the State,

[. . .]

On the freed people

And I do further proclaim . . . that any provision which may be adopted by such state government in relation to the freed people of such state, which shall recognize and declare their permanent freedom, provide for their education, and which may yet be consistent, as a temporary arrangement with their present condition as a laboring, landless, and homeless class, will not be objected to by the National Executive.

The Wade-Davis Bill — passed by Congress, July 2, 1864 (pocket-vetoed)

Wade-Davis Bill (majority loyalty)

SEC. 2. . . . That so soon as the military resistance to the United States shall have been suppressed in any such state . . . the provisional governor shall direct the marshal of the United States . . . to name a sufficient number of deputies, and to enroll all white male citizens of the United States resident in the State in their respective counties, and to request each one to take the oath

to support the Constitution of the United States, and in his enrollment to designate those who take and those who refuse to take that oath, which rolls shall be forthwith returned to the provisional governor; and if the persons taking that oath shall amount to a majority of the persons enrolled in the State, he shall, by proclamation, invite the loyal people of the State to elect delegates to a convention charged to declare the will of the people of the State relative to the reestablishment of a State government subject to, and in conformity with, the Constitution of the United States.

[. . .]

Who may vote for delegates

SEC. 4. . . . That the delegates shall be elected by the loyal white male citizens of the United States of the age of twenty-one years, and resident at the time in the county, parish, or district in which they shall offer to vote, and enrolled as aforesaid, or absent in the military service of the United States, and who shall take and subscribe the oath of allegiance to the United States . . . ; but no person who has held or exercised any office, civil or military, State or Confederate, under the rebel usurpation, or who has voluntarily borne arms against the United States, shall vote, or be eligible to be elected as delegate, at such election.

[. . .]

Conditions the new constitution must contain

SEC. 7. . . . That the convention shall declare, on behalf of the people of the State their submission to the Constitution and laws of the United States, and shall adopt the following provisions, hereby prescribed by the United States in the execution of the constitutional duty to guarantee a republican form of government to every State, and incorporate them in the constitution of the State, that is to say: First. No person who has held or exercised any office, civil or military, except offices merely ministerial, and military offices below the grade of colonel, state or confederate, under the usurping power, shall vote for or be a member of the legislature, or governor. Second. Involuntary servitude is forever prohibited, and the freedom of all persons is guaranteed in said State. . . .

[. . .]

Emancipation

SEC. 12. . . . That all persons held to involuntary servitude or labor in the states aforesaid are hereby emancipated and discharged therefrom, and they and their posterity shall be forever free.

[. . .]

Lincoln’s pocket-veto proclamation

Now, therefore, I, ABRAHAM LINCOLN . . . do proclaim . . . that, while I am (as I was in December last, when by proclamation I propounded a plan for restoration) unprepared by a formal approval of this bill, to be inflexibly committed to any single plan of restoration;

Words to know

subscribe — sign one’s name to

inviolate — unbroken; faithfully kept

tenor — the exact wording

contravening — going against

provisional governor — temporary governor appointed until a state government is restored

rebel usurpation — the Confederate government, seen as an illegal seizure of power

ministerial — minor clerical duties with no decision-making power

propounded — put forward for consideration